

		yet a party to this action. Its motion to intervene will be heard on 8/7/2026. Clerk to give notice.
2	Pedroza vs. First National Insurance Company of America 30-2025-01529067-CU-PO-CJC	Motion to Be Relieved as Counsel of Record The motion of attorney Tina Abdolhosseini to withdraw as attorney of record for plaintiff Rosa Maria Pedroz is DENIED. Counsel did not sign the notice of motion or the supporting declaration and failed to check any of the boxes under items 3, 4, and 6 regarding service, the next hearing and trial, respectively. Counsel also failed to file a proof of service showing service on both Plaintiff and Defendant. (See Cal. Rules Court, rules 3.1300(c), 3.1362(d).) Clerk to give notice.
3	Spencer vs. Fowler 30-2026-01556002-CU-PO-CJC	Motion for Leave to File Amended Complaint Plaintiff Jessica L. Spencer's motion for leave to file a proposed first amended complaint is GRANTED. Plaintiff is ORDERED to designate the proposed amended complaint as the "first amended complaint" as required by California Rules of Court, rule 3.1324(a)(1) and to file the original and serve a copy within 5 days. Clerk to give notice.
4	Oh vs. Chen 30-2025-01521231-CU-CL-CJC	Motion to Set Aside/Vacate Default and Judgment Defendant Binbing Chen's motion for an order setting aside the entry of default and default judgment is DENIED. When a defendant challenges the court's personal jurisdiction on the ground of improper service of process the burden is on plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service. (<i>Summers v. McClanahan</i> (2009) 140 Cal.App.4th 403, 413.) The proof of service filed by plaintiff on November 24, 2025 shows defendant was personally served with the summons and complaint at her residence in Irvine on November 20, 2025. (ROA 19.) Service was effectuated by a registered process server, Fernando Garcia, and

		plaintiff submits the declaration of Garcia with the opposition to the motion. (ROA 106.) Garcia declares plaintiff's counsel gave him the address for service and on the day reflected on the POS, he went to the address and personally served defendant with the summons and complaint and other documents, including plaintiff's application for a right to attach order. Defendant's conclusory declaration, "I was not personally served with the summons and complaint on November 20, 2025, or on any other date" and "[n]o process server personally handed me the summons and complaint" (ROA 91) is not credible. The court's minute order of March 6, 2026 (ROA 29) reflects defendant was present with her daughter at the hearing on plaintiff's application for the right to attach order. The court denied defendant's request for a continuance of the hearing based on defendant's representation she only learned of the action after being in China from "the end of December to the end of February." The court noted defendant was personally served on November 20, 2025 and "the summons clearly states defendant has 30 days to file an answer" and no answer was on file at the time of the hearing. Given defendant's appearance at the hearing on the application for the right to attach order and the court's comments to the defendant, the court rejects defendant's contention she did not have actual notice of the action in time to defend. Default was not entered until March 25, 2026. Even if she could not file a responsive pleading within the time required after service of the summons and complaint, she had ample time to file a responsive pleading after the hearing where she was placed on notice by the court. Clerk to give notice.
5	Haddadin vs. Labella 30-2025-01500533-CU-FR-CJC	Motion to Set Aside/Vacate Default and Judgment Defendant Robert LaBella's Motion for Relief from Entry of Default is DENIED. Defendant has failed to establish a proper ground for relief from default. Defendant's motion argues he was unable to attend a case management conference. Default was entered due to his failure to file an answer, and he has not shown his failure to file an answer was due to mistake, neglect, or inadvertence pursuant to Code of